



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CV-04
SERVE ON THE AGENCY AND THE COUNTY ATTORNEY
REV. 08/2026

NOTICE OF CLAIM AGAINST A GOVERNMENT ENTITY

Mandatory pre-suit notice - must be filed before suing any department or officer

APPLICANT / REQUESTOR

Full name / entity e.g. Marcus D. Reeves

Role / department (if any)

CASE NUMBER (UCN)

e.g. 26-CF-000123 (YY - TYPE - NUMBER)

DIVISION e.g. Civil

JUDGE e.g. Hon. Hollis T. Marren

CF felony | MM misdem. | CT crim. traffic | TR traffic | CC civil | SC small claims

HOW TO USE THIS FORM

You cannot sue a police department, sheriff's office, fire department, or any other government body in Clearwater County until you file this notice and wait out the review period. Serve one copy on the department and one on the County Attorney. Keep the stamped copy - you must attach it to your complaint (Form CV-01). Every box is blank and ready to type in; anything you type appears in black. The small grey "e.g." notes beside each label are only examples of what belongs there.

CLAIMANT

CHARACTER OR ENTITY NAME

e.g. Marcus D. Reeves

TYPE (INDIVIDUAL / BUSINESS / AGENCY)

USERNAME

e.g. mreeves cw

CONTACT HANDLE

e.g. mreeves

RESIDENCE OR PREMISES

e.g. 412 Palm Row, Harbourside

OCCUPATION / EMPLOYER

REPRESENTED BY

e.g. Asst. P.D. Grant

GOVERNMENT ENTITY OR EMPLOYEE BEING CLAIMED AGAINST

DEPARTMENT / AGENCY

e.g. Clearwater County Sheriff's Office

INDIVIDUAL OFFICER OR EMPLOYEE

e.g. Dep. Alan Vance

BADGE / ID NO.

SUPERVISOR AT THE TIME

e.g. Sgt. Nadia Ibarra

SHIFT / UNIT

e.g. B / Patrol 12

SECOND EMPLOYEE INVOLVED

e.g. Dep. R. Salas (#2288)

THE INCIDENT

DATE OF INCIDENT

e.g. 08/14/26

TIME

e.g. 09:00

LOCATION

e.g. Dock Road at Marina Way

INCIDENT / CAD NO.

e.g. CAD-26-118442

RELATED CRIMINAL CASE NO.

e.g. 26-CF-000418

BODY CAMERA FOOTAGE EXISTS

IA COMPLAINT FILED

NATURE OF THE CLAIM

☐ Excessive or unreasonable force

☐ Unlawful search or seizure

☐ Malicious prosecution

☐ Property damaged during a search

☐ Vehicle damaged during a pursuit or stop

☐ Negligent hiring, training, or supervision

☐ False arrest without probable cause

☐ False imprisonment / over-detention

☐ Denial of medical care in custody

☐ Property lost or not returned from evidence

☐ Negligent operation of a government vehicle

☐ Other (describe below)

DETAILED STATEMENT OF THE INCIDENT

WHAT HAPPENED, IN ORDER. INCLUDE WHAT EACH EMPLOYEE DID, WHAT WAS SAID, AND WHO WITNESSED IT. e.g. On 14 August 2026 at approximately 21:40 hours I observed a white

INJURIES AND DAMAGES SUSTAINED

PHYSICAL INJURIES, MEDICAL TREATMENT, PROPERTY DAMAGE, LOST INCOME e.g. Bruising to the left wrist and shoulder requiring EMS assessment on scene and follow-up treatment.

DAMAGES CLAIMED

EMS AND HOSPITAL BILLS e.g. \$2,240.00	ONGOING TREATMENT COSTS e.g. \$600.00	PROPERTY DAMAGE e.g. \$3,100.00	LOST WAGES e.g. \$1,850.00
PAIN AND SUFFERING e.g. \$5,000.00	OTHER LOSSES e.g. \$300.00	TOTAL CLAIM AMOUNT e.g. \$14,500.00	SETTLEMENT DEMAND e.g. \$12,000.00

WITNESSES

NAME	ROLE	CONTACT	STATEMENT OBTAINED

e.g. Dana Reeves | Witness | dreeves | Yes

DOCUMENTS ATTACHED

☐ Photographs of injuries or damage	☐ EMS treatment records
☐ Repair estimates	☐ Arrest affidavit or citation
☐ Body camera or dash camera reference numbers	☐ Witness statements
☐ Internal Affairs complaint (Form AD-05)	☐ Public records request response (Form AD-03)

STATUTORY WAITING PERIOD

The agency has 45 days from the date this notice is received to investigate and respond. You may not file suit during that period. If the agency denies the claim or does not respond in time, you may then file a complaint under Form CV-01 and attach a stamped copy of this notice.

I declare that the statements in this notice are true and accurate to the best of my knowledge. I understand that a knowingly false claim against a government entity may be grounds for dismissal and sanctions.

CLAIMANT OR COUNSEL e.g. Grant Whitlow

PRINTED NAME	DATE e.g. 09/10/26

RECEIVED BY - COUNTY ATTORNEY e.g. Grant Whitlow
Date and time stamp

RECEIVED BY - AGENCY e.g. Marcus D. Reeves
Date and time stamp

PRINTED NAME	DATE e.g. 09/10/26

AGENCY RESPONSE DUE e.g. Marcus D. Reeves
45 days from receipt

AGENCY DISPOSITION (COMPLETED BY THE ENTITY)

☐ **CLAIM DENIED**
The entity denies liability. The claimant may proceed to file suit.

☐ **CLAIM ACCEPTED - SETTLEMENT OFFERED**
The entity offers the amount below in full settlement.

☐ **CLAIM UNDER INVESTIGATION - EXTENSION REQUESTED**
The entity requests additional time as stated below.

☐ **CLAIM RESOLVED ADMINISTRATIVELY**
Resolved without payment. See explanation below.

SETTLEMENT OFFERED e.g. \$7,500.00

RESPONSE DATE e.g. 10/02/26

REVIEWING OFFICIAL e.g. Chief Deputy M. Kaur

BASIS FOR THE AGENCY'S DECISION

e.g. The Court has considered the affidavit, the exhibits, and the argument of counsel, and finds the facts stated above are supported by the record.

AGENCY LEGAL REPRESENTATIVE e.g. Marcus D. Reeves

PRINTED NAME

DATE e.g. 09/10/26